

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
ANGEL SOSA,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICERS
CECILIA PENA (SHIELD NO. 1303), CARLOS RUEDA
(SHIELD NO. 7843), ROBERT TRAVIS (SHIELD NO.
7151) TRISTAN PARKER (TAX REGISTRY NO.
949543),

Defendants.
-----X

CIVIL ACTION

*AMENDED VERIFIED
COMPLAINT*

JURY TRIAL DEMANDED

Index No. 12CV08206

Plaintiff, by his attorney, Jason L. Lopez, as and for his amended complaint hereby
alleges as follows:

Parties

1. Plaintiff Angel Sosa presently resides and is domiciled in the State of New York.
2. Upon information and belief defendant the City of New York (hereinafter "City")
is a municipal corporation domiciled in the State of New York.
3. Upon information and belief, defendant New York City Police Officers CECILIA
PENA (SHIELD NO. 1303), CARLOS RUEDA (SHIELD NO. 7843), ROBERT TRAVIS
(SHIELD NO. 7151). reside and are domiciled in the State of New York.
4. Upon information and belief, defendant New York City Police Officer TRISTAN
PARKER (TAX REGISTRY NO. 949543) resides and is domiciled in the State of New York.

Jurisdiction - Venue

5. This action is brought pursuant to 42 U.S.C. §1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and the Constitution and laws of the State of New York. This Court has subject matter jurisdiction over the federal claims pursuant to 28 U.S.C. §1331 and §1343(a)(3)(4) and supplemental jurisdiction over the asserted state law claims pursuant to 28 U.S.C. §1367.

6. Venue on this action lies in the Southern District of New York pursuant to 28 U.S.C. §1391 as the events giving rise to this action occurred in the Southern District.

General Allegations of Fact

7. Plaintiff Angel Sosa presently resides in Bronx County.

8. At all times relevant hereto, the City maintained, controlled and operated the New York City Police Department which is empowered under the laws of the State and City of New York to prevent, respond to and investigate crimes.

9. At all times relevant hereto, the City authorized and maintained policies and procedures that governed the conduct of members of the New York City Police Department..

10. At all times relevant hereto, Police Officer CECILIA PENA (SHIELD NO. 1303) was employed by the New York City Police Department as a police officer. As such, CECILIA PENA (SHIELD NO. 1303) possessed the authority under the color of law to make arrests and investigate crimes committed in the City of New York.

11. At all times relevant hereto, Police Officer CARLOS RUEDA (SHIELD NO. 7843) was employed by the New York City Police Department as a police officer. As such, CARLOS RUEDA (SHIELD NO. 7843) possessed the authority under the color of law to make arrests and investigate crimes committed in the City of New York.

12. At all times relevant hereto, Police Officer ROBERT TRAVIS (SHIELD NO. 7151) was employed by the New York City Police Department as a police officer. As such, ROBERT TRAVIS (SHIELD NO. 7151) possessed the authority under the color of law to make arrests and investigate crimes committed in the City of New York.

13. At all times relevant hereto, TRISTAN PARKER (TAX REGISTRY NO. 949543) was employed by the New York City Police department as police officers. As such, TRISTAN PARKER (TAX REGISTRY NO. 949543) possessed the authority under the color of law to make arrests and investigate crimes committed in the City of New York.

14. On December 8, 2011 plaintiff was lawfully walking in the vicinity of 1049 Westchester Avenue, Bronx, NY 10459 and subsequently was seated in his vehicle in the vicinity of the same location.

15. On December 8, 2011, at approximately 4:00 PM plaintiff was stopped and detained by the defendant police officers.

16. Thereafter Police Officers CECILIA PENA (SHIELD NO. 1303), CARLOS RUEDA (SHIELD NO. 7843), ROBERT TRAVIS (SHIELD NO. 7151) and POLICE OFFICER TRISTAN PARKER (TAX REGISTRY NO. 949543) falsely arrested plaintiff. Plaintiff was held at the 41st precinct which was under the control of the New York City Police Department.

17. Plaintiff was ultimately charged with Disorderly Conduct *to wit* making unreasonable noise for which he hired the undersigned to represent his interests. This matter was adjourned in contemplation of dismissal and ultimately was dismissed.

FIRST CAUSE OF ACTION
VIOLATION OF CONSTITUTIONAL RIGHTS PURSUANT TO 42 U.S.C. §1983

18. Plaintiff repeats, re-alleges and incorporates herein by reference the allegations contained in paragraphs 1 through 17.

19. At all times pertinent hereto the defendants acted under color of law in connection with their use of excessive force, false arrest and imprisonment of plaintiff.

20. That on December 8, 2011 the defendants used an excessive amount of force against plaintiff, wrongfully seized, detained, searched, arrested and imprisoned plaintiff in violation of his constitutional rights including but not limited to violation of the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution in violation of his rights secured by the Constitution and laws of the State of New York. That on December 8, 2011 Defendant City of New York had customs, policies and practices in place that allowed for the aforementioned actions and inactions.

SECOND CAUSE OF ACTION
STATE CLAIMS OF GENERAL NEGLIGENCE

21. Plaintiff repeats, re-alleges and incorporates herein by reference the allegations contained in paragraphs 1 through 20.

22. The defendant City was negligent in hiring, training, supervising and retaining police officers CECILIA PENA (SHIELD NO. 1303), CARLOS RUEDA (SHIELD NO. 7843), ROBERT TRAVIS (SHIELD NO. 7151) and POLICE OFFICER TRISTAN PARKER (TAX REGISTRY NO. 949543).

GENERAL DAMAGE

23. Plaintiff repeats, re-alleges and incorporates herein by reference the allegations contained in paragraphs 1 through 22.

24. As a result of the actions and inactions of the defendants set forth herein, the plaintiff was caused to incur a violation of his civil and constitutional rights.

25. As a result of the actions of the defendants set forth herein, the plaintiff was caused to suffer personal injuries including but not limited to bruises and lacerations to his

wrists, forehead and neck. In addition, plaintiff was caused to sustain shock, embarrassment, humiliation, and fear that prevents the plaintiff from engaging in and enjoying ordinary daily activities, nervousness, anxiety and stress. As such, the plaintiff seeks damages in the amount of seventy five thousand dollars (\$75,000).

26. This action falls within one of the exceptions set forth in C.P.L.R. Article 16.

PUNITIVE DAMAGES

27. Plaintiff repeats, re-alleges and incorporates herein by reference the allegations contained in paragraphs 1 through 26.

28. The defendants actions as set forth herein rise to a level of wanton, reckless, malicious and intentional disregard of the plaintiffs civil and constitutional rights and as such the plaintiff herein requests that this court impose punitive damages as a result of said actions.

SPECIAL DAMAGES

29. Plaintiff repeats, re-alleges and incorporates herein by reference the allegations contained in paragraphs 1 through 28.

30. Plaintiff seeks to recover reasonable attorneys fees and costs associated with the prosecution of this civil action pursuant to 42 U.S.C. § 1988.

31. In addition, plaintiff seeks to recover the legal fees associated with the defense of the underlying criminal action that gave rise to this action.

32. That at least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to the defendants for adjustment and they have neglected and/or refused to make adjustments or payment thereof. That this action is not commenced more than one (1) year and ninety (90) days after the cause of action accrued; that prior to the

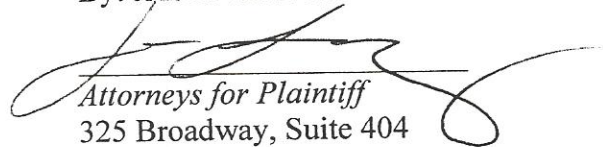
commencement of this action, a General Municipal Law 50-h hearing was held of the plaintiff by the defendant on April 10, 2012.

WHEREFORE, plaintiff demands judgment against the defendants for the amount in excess of the jurisdictional limits of the Court together with attorney's fees, interest, costs, and such other relief as the court may deem appropriate.

Dated: New York, NY
April 2, 2013

LAW OFFICE OF JASON LOPEZ

By: JASON L. LOPEZ

A handwritten signature in black ink, appearing to read 'Jason L. Lopez', is written over a horizontal line.

Attorneys for Plaintiff

325 Broadway, Suite 404

New York, NY 10007

(212) 964-4144

VERIFICATION

Jason Lopez an attorney dully admitted to practice law in the courts of the State of New York affirms the following under the penalty of perjury:

1. I am counsel to the plaintiff in the annexed action and as such am fully aware of the alleged facts that give rise to this action.
2. I have read the foregoing complaint and believe the same to be true to the best of my knowledge other than those matters stated to be upon information and belief.
3. This verification is being made by counsel as the plaintiff resides outside the county where counsel maintains his office.

Dated: April 2, 2013
New York, NY

LAW OFFICE OF JASON LOPEZ
By: JASON L. LOPEZ



Attorneys for Plaintiff
325 Broadway, Suite 404
New York, NY 10007
(212) 964-4144

AFFIDAVIT OF DUE DILIGENCE

INDEX NO.: 12CV08206

UNITED STATES DISTRICT COURT

COUNTY OF NEW YORK

DISTRICT:

Attorneys: Jason Lopez Jason Lopez Esq PH: 212-964-4144

Address: 325 Broadway, suite 404 New York NY 10007 File No.:

ANGEL SOSA

VS

Plaintiff / Petitioner

*The City Of New York, Police Officers Cecilia Pena (shield No 1303), Carlos Rueda (shield No 7843),
Robert Travis (shield No 7151) Tristan Parker (tax Registry No 949543)*

defendant

STATE OF NEW YORK, COUNTY OF NEW YORK, SS.:

Howard Collado, being duly sworn, deposes and says: that deponent is not a party to this action, is over the age of eighteen (18) years and resides in New York State; deponent attempted to serve the within:

AMENDED VERIFIED COMPLAINT

upon POLICE OFFICER CECILIA PENA, SHIELD NO 1303

the defendant / respondent therein named, and that after due search, careful inquiry and diligent attempts at

BROOKLYN COURT SECTION, 210 JORALEMON ST. BROOKLYN, NY 11201

deponent was unable to effect process upon the person being served because of the following reason(s):

- | | |
|---|--|
| ☐ unknown at address | ☐ house vacant |
| ☐ moved, left no forwarding | ☐ address does not exist |
| ☐ evading | ☐ service canceled by litigant |
| ☐ unable to serve in timely fashion | ☐ no other occupants / tenants over 18 years of age |
| ☒ Other: The address provided does not accept legal papers. | |

ATTEMPTS WERE MADE AS FOLLOWS:

Date	Time	Place
4/3/2013	12:02pm	

Sworn to before me on December 5, 2012

WENDY RESNICK
NOTARY PUBLIC, State of New York
No.01RE5067464, Westchester County
Commission Expires Oct.15, 2014

Howard Collado
Server's Lic # 1455013
Invoice/Work Order # 13007365



INDEX #: 12CV08206

Date Filed: _____

Court Date: _____

UNITED STATES DISTRICT COURT
COUNTY OF NEW YORK

DISTRICT: _____

Attorneys: Jason Lopez Jason Lopez Esq PH: 212-964-4144

Address: 325 Broadway, suite 404 New York NY 10007 File No.: _____

ANGEL SOSA

vs

Plaintiff(s)/Petitioner(s)

The City Of New York, Police Officers Cecilia Pena (shield No 1303), Carlos Rueda (shield No 7843), Robert Travis (shield No 7151) Tristan Parker (tax Registry No 949543)

Defendant(s)/Respondent(s)

STATE OF NEW YORK, COUNTY OF NEW YORK, SS.:

AFFIDAVIT OF SERVICE

Cory Banks, being duly sworn deposes and says: Deponent is not a party herein, is over 18 years of age and resides in New York State. On April 3, 2013 at 14:00:00, at 41ST PRECINCT, 1035 LONGWOOD AVENUE, BRONX, NY 10459, deponent served the within AMENDED VERIFIED COMPLAINT

on: POLICE OFFICER CARLOS RUEDA, SHIELD NO 7843, Witness therein named.

#1 INDIVIDUAL ☐ By delivering a true copy of each to said recipient personally; deponent knew the person served to be the person described as said person therein.

#2 ☐ by delivering thereat a true copy of each to _____ personally. Deponent knew said described in said aforementioned document as said defendant and knew said individual to be _____ thereof.

#3 SUITABLE AGE PERSON ☒ By delivering a true copy of each to MS SULLIVAN a person of suitable age and discretion. Said premises is recipient's: [X] actual place of business [] dwelling house (usual place of abode) within the state.

#4 AFFIXING TO DOOR ☐ By affixing a true copy of each to the door of said premises, which is recipient's: [] actual place of business [] dwelling house (place of abode) within the state.

Deponent was unable, with due diligence to find recipient or a person of suitable age and discretion, having called thereat on the _____ day of _____ at _____ on the _____ day of _____ at _____ on the _____ day of _____ at _____ Address confirmed by _____

#5 MAIL COPY On April 3, 2013, deponent completed service by depositing a true copy of each document to the Witness at 41ST PRECINCT, 1035 LONGWOOD AVENUE, BRONX, NY 10459

☒ in a 1st Class postpaid properly addressed envelope marked "Personal and Confidential" in an official depository under the exclusive care and custody of the United States Post Office in the State of New York and Certified Mail # _____

#6 DESCRIPTION ☒ A description of the Defendant, or other person served, or spoken to on behalf of the Defendant is as follows:
(use with #1, 2 or 3) Sex: Female Color of skin: Brown Color of hair: Black Age: 50 - 60 Yrs. Height: 5' 4" - 5' 8"
Weight: 161 - 200 Lbs. Other Features: _____

#7 WIT. FEES ☐ the authorized witness fee and / or traveling expenses were paid (tendered) to the recipient.

#8 MILITARYSRVC ☐ Deponent asked person spoken to whether the recipient was presently in military service of the United States Government or of the State of New York and was informed that recipient was not. Recipient wore ordinary civilian clothes and no military uniform.

#9 USE IN NYC CIVIL COURT ☐ The language required by NYCRR 2900.2 (e), (f) & (h) was set forth on the fact of said summons (es).

#10 OTHER ☐

Sworn to before me on April 3, 2013

JAZMIN PATINO
COMMISSIONER OF DEEDS
City of New York No. 2-12385 New York County
Commission Expires on August 1, 2014

Cory Banks
Server's Lic # 1166423
Invoice/Work Order # 13007360



INDEX #: 12CV08206

Date Filed:

Court Date:

UNITED STATES DISTRICT COURT
COUNTY OF NEW YORK

DISTRICT:

Attorneys: Jason Lopez Jason Lopez Esq PH: 212-964-4144

Address: 325 Broadway, suite 404 New York NY 10007 File No.:

ANGEL SOSA

vs

Plaintiff(s)/Petitioner(s)

The City Of New York, Police Officers Cecilia Pena (shield No 1303), Carlos Rueda (shield No 7843), Robert Travis (shield No 7151) Tristan Parker (tax Registry No 949543)

Defendant(s)/Respondent(s)

STATE OF NEW YORK, COUNTY OF NEW YORK, SS.:

AFFIDAVIT OF SERVICE

Cory Banks, being duly sworn deposes and says: Deponent is not a party herein, is over 18 years of age and resides in New York State. On April 3, 2013 at 12:37PM, at 14TH PCT, 357 W 35TH STREET, NEW YORK, NY 10001, deponent served the within AMENDED VERIFIED COMPLAINT

on: TRISTAN PARKER, Witness therein named.

#1 INDIVIDUAL ☐ By delivering a true copy of each to said recipient personally; deponent knew the person served to be the person described as said person therein.

#2 ☐ by delivering thereat a true copy of each to personally. Deponent knew said described in said aforementioned document as said defendant and knew said individual to be thereof.

#3 SUITABLE AGE PERSON ☒ By delivering a true copy of each to MR ENG a person of suitable age and discretion. Said premises is recipient's: [X] actual place of business [] dwelling house (usual place of abode) within the state.

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#6 DESCRIPTION ☒ A description of the Defendant, or other person served, or spoken to on behalf of the Defendant is as follows:

(use with #1, 2 or 3) Sex: Male Color of skin: Asian Color of hair: Black Age: 50 - 60 Yrs. Height: 5' 4" - 5' 8" Weight: 131 - 160 Lbs. Other Features:

#7 WIT. FEES ☐ the authorized witness fee and / or traveling expenses were paid (tendered) to the recipient.

#8 MILITARYSRVC ☐ Deponent asked person spoken to whether the recipient was presently in military service of the United States Government or of the State of New York and was informed that recipient was not. Recipient wore ordinary civilian clothes and no military uniform.

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JAZMIN PATINO
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City of New York No. 2-12385: New York County
Commission Expires on August 1, 2014

Cory Banks
Server's Lic # 1166423
Invoice/Work Order # 13007363



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Date Filed:

Court Date:

UNITED STATES DISTRICT COURT
COUNTY OF NEW YORK

DISTRICT:

Attorneys: Jason Lopez Jason Lopez Esq PH: 212-964-4144

Address: 325 Broadway, suite 404 New York NY 10007 File No.:

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vs

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Defendant(s)/Respondent(s)

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on: POLICE OFFICER ROBERT TRAVIS, SHIELD NO 7151, Witness therein named.

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#10 OTHER ☐

Sworn to before me on April 3, 2013

JAZMIN PATINO
COMMISSIONER OF DEEDS
City of New York No. 2-12385: New York County
Commission Expires on August 1, 2014

Cory Banks
Server's Lic # 1166423
Invoice/Work Order # 13007362



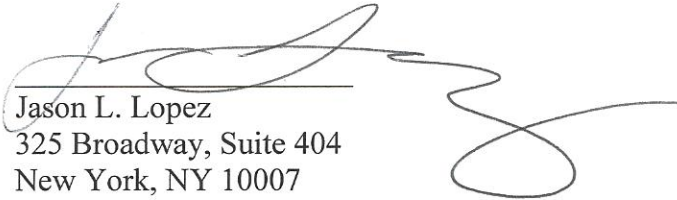
AFFIRMATION OF SERVICE

Jason Lopez an attorney dully admitted to practice law in the courts of the State of New York hereby affirms the following under the penalty of perjury:

I am over the age of eighteen and I am not a party to this litigation.

On April 3, 2013 I served a copy of the Amended Verified Complaint upon the City of New York by personal delivering a copy of the same to the New York City Law Department, counsel for the City of New York, 100 Church Street, New York, NY 10007 and leaving a true and accurate copy of the same with Madelyn Santana a person dully authorized to accept service of the same.

Dated: April 3, 2013
New York, NY



Jason L. Lopez
325 Broadway, Suite 404
New York, NY 10007

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X

ANGEL SOSA,

Index No. 12CV08206

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICERS
CECILIA PENA (SHIELD NO. 1303), CARLOS RUEDA
(SHIELD NO. 7843), ROBERT TRAVIS (SHIELD NO.
7151) TRISTAN PARKER (TAX REGISTRY NO.
949543),

Defendants.

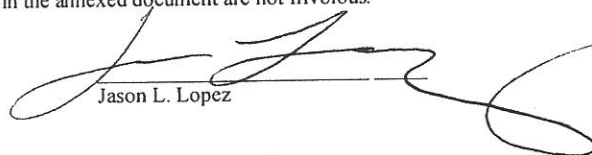
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AMENDED VERIFIED COMPLAINT

LAW OFFICE OF JASON LOPEZ
325 Broadway, Suite 404
New York, NY 10007
(212) 964-4144

The undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that,
upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 2, 2013


Jason L. Lopez

Service of the within is hereby admitted
Dated:

Attorney(s) for